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File No.: EXP202306144  
RESOLUTION OF

PROCEEDING OF WARNING

Of the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 27, 2023, a complaint was received by the Spanish Agency for Data Protection (hereinafter, AEPD) with registration number REGAGE23e00027145816, submitted by A.A.A. (hereinafter the complainant), for an alleged violation of Article 13 and 6.1 of REGULATION (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter, GDPR), Article 22.2 and 22.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

In particular, due to the following circumstances:

The appellant states that the respondent has installed two surveillance cameras on the facade of their residence which, due to their location and orientation, are capable of capturing the public road, without any administrative authorization for this and without the surveillance area signs installed including information about the data controller and the address to exercise rights.

SECOND: In accordance with the preliminary mechanism for the admission of complaints submitted to the AEPD, as provided in Article 65.4 of the LOPDGDD, which consists of forwarding them to the data protection officers designated by the controllers or processors, or to them when they have not designated any, and with the purpose indicated in the aforementioned article, the complaint was forwarded to B.B.B. (hereinafter, the respondent) for analysis and response within one month.

The forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was sent by postal mail on May 12, 2023, and was returned marked "absent from delivery," according to the delivery impossibility certification in the file.

The second attempt was made on June 2, 2023, resulting in "Incorrect address," for which reason the AEPD requested the NIF and tax address of the respondent from the AEAT, but the Tax Agency responded indicating that such information could not be found.

A new attempt was made by postal mail on June 15, 2023, resulting in a return marked "absent from delivery" according to the delivery impossibility certification in the file.

THIRD: On July 27, 2023, in accordance with Article 65.5 of the LOPDGDD, the complaint presented was admitted for processing.

FOURTH: On August 8, 2023, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the complaint, as it was not possible to obtain the NIF of the respondent or any other possible delivery address. The resolution was notified to the complainant on September 6, 2023, as evidenced in the file.

FIFTH: On September 4, 2023, the respondent submitted a written statement with allegations to the Registry.

SIXTH: On September 8, 2023, the complainant filed a voluntary appeal for reconsideration, RR/00661/2023, through the AEPD's Electronic Registry, against the resolution issued in file EXP202306144, expressing their disagreement with the contested resolution and requesting that the processing of the initial complaint submitted to the AEPD continue.

SEVENTH: On November 7, 2023, the appeal filed was forwarded to the respondent in accordance with the provisions of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for the purpose of formulating allegations

and presenting the documents and evidence deemed appropriate, receiving a response registered on December 18, 2023.

EIGHTH: In response to the filing of said appeal for reconsideration, RR/00661/2023, the AEPD indicated that, after forwarding the complaint in accordance with Article 65.4 of the LOPDGDD, as it was not possible to obtain the NIF of the respondent or any other possible delivery address, the complaint presented was archived.

NINTH: In light of this circumstance, the complainant provided a new address for communications regarding the respondent, for which reason the AEPD issued a favorable resolution on April 16, 2024.

TENTH: On July 30, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged violations of Articles 5.1 c) and 13 of the GDPR classified in Articles 83.4 and 83.5 of the GDPR.

ELEVENTH: The notification of the aforementioned initiation agreement was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

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3/13

Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on September 10, 2024, as stated in the acknowledgment of receipt that is part of the file.

TWELFTH: On September 11, 2024, a written statement of allegations was received from the responding party, which, in summary, indicates that it will proceed to remove the cameras in the following days.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

#### PROVEN FACTS

FIRST: The responding party has installed two surveillance cameras on the facade of its residence that, due to their location and orientation, are capable of capturing the public road, without the surveillance area signs installed providing information about the data controller and the address to which one should direct requests for the exercise of rights.

SECOND: The responding party informs this Agency on September 11, 2024, that it will proceed to remove the cameras in the following days.

#### LEGAL GROUNDS

I

##### Competence

According to the provisions of Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

##### Image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“processing”: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or

any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;” Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported surveillance system is in accordance with the provisions of the GDPR. Article 22 of the LOPDGDD establishes that individuals or legal entities, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of preserving the safety of persons and property, as well as their facilities.

For the processing of personal data to be lawful, it must fall within one of the cases outlined in Article 6.1 of the GDPR, which states the following:

1. Processing shall be lawful only if at least one of the following applies: a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

The provision in paragraph f) of the first subsection shall not apply to processing carried out by public authorities in the exercise of their functions.

The use of surveillance systems in the common areas of a community of property owners must respect various aspects for such a recording system to comply with current data protection regulations.

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5/13

Firstly, it must have the proper legitimacy, so that the installation of cameras in common areas complies with data protection regulations, it will be necessary for such installation to have been approved by an agreement of the Homeowners' Association, and this agreement must be recorded in the minutes of said Association.

It is recommended that the agreement reflects some of the characteristics of the video surveillance system, such as the number of cameras or the area covered by them.

Secondly, prior to its operation, the registration of activities related to this processing must be carried out. This is an internal document. The FACILITA\_RGPD tool available on the AEPD website can be used when it does not involve large infrastructures (train stations, shopping centers). The Guide on the use of video cameras for security and other purposes provides a model for the registration of activities. Thirdly, one or more signs must be installed at the various access points to the monitored area, and in a visible location, informing that access is to a video-monitored area.

The sign will clearly indicate the identity of the person responsible for the installation, to whom and where to address to exercise the rights provided for in data protection regulations, and where to obtain more information about the processing of personal data. The AEPD offers a model sign in the Guide on the use of video cameras. Likewise, the remaining information required by data protection legislation will be made available to those affected.

This information may be available at the concierge, reception, offices, bulletin boards, or be accessible via the Internet.

Regarding the installation of the video surveillance system, the cameras may only capture images of the common areas of the community. Images of public roads may not be captured unless it is essential

for the intended purpose, except for a minimal strip of the accesses to the property, nor images of adjacent land and homes or any other external space.

If orientable and/or zoom cameras are used, the installation of privacy masks will be necessary to avoid capturing images of public roads, land, and third-party homes.

The hiring of an external video surveillance service or the installation of cameras by a third party does not exempt the homeowners' community from compliance with data protection regulations.

Regarding the monitors and viewing of images, it should be noted that access to the images will be restricted to persons designated by the community. Under no circumstances will they be accessible to neighbors via the community television channel.

If access is made via an Internet connection, it will be restricted with a username and password (or any other means that guarantees unique identification and authentication), which will only be known by the persons authorized to access such images.

Once the system is installed, it is recommended to change the password, avoiding easily deducible ones.

In the event that the camera system includes a recording system, it will be located in a monitored or restricted access area. Only authorized personnel will have access to the recorded images, who must enter a username and password.

The images will be retained for a maximum period of one month from their capture, after which they will be deleted.

Images used to report crimes or infractions will be attached to the report and will be retained for possible delivery to the Security Forces or to the Courts and Tribunals that request them. They may not be used for any other purpose.

Requests for images by the Security Forces will be made within the framework of judicial or police actions. The request to the data controller will be the document that supports them in transferring data to them or to the Courts and Tribunals that require it.

### III

#### Infringement

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data. Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and property, as well as their facilities. Article 12.1 of the GDPR indicates that anyone carrying out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR. In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the responsible party, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc.

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7/13

placed in a visible public space or on a web address, and must refer to the rest of the elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment. This duty of information will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether they are indoors or

outdoors. In the event that the monitored space has several entrances, this sign indicating the video surveillance area must be placed at each of them. This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear. The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing operation, only the relevant personal data that is pertinent and strictly necessary for fulfilling the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. The relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted. The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Bodies.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security. That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location.

And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities. Under no circumstances will the use of surveillance practices beyond the area subject to the installation be permitted, and in particular, it must not affect the surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

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8/13

Images in spaces owned by third parties cannot be captured or recorded without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, capturing images in private spaces, such as changing rooms, lockers, or employee break areas, is deemed disproportionate.

#### IV

##### Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

- 1.- Individuals or legal entities, whether public or private, may establish a video surveillance system for the purpose of ensuring the safety of persons and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved by other means that are less intrusive to the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Article 39 of the GDPR.
- 2.- The images obtained may not be used for a subsequent purpose incompatible with the one that justified the installation of the video surveillance system.
- 3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGD, must be fulfilled, in the terms already indicated.
- 4.- The processing of images through the installation of camera or video camera systems must be

lawful and comply with the principles of proportionality and data minimization, in the terms already indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where applicable, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt the appropriate security measures.

8.- When a security breach occurs that affects the processing of images from cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours. A security breach is understood to be the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to:

- legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the section "Guides and tools").

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the section "Guides and tools"), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and where appropriate, generating various documents, informative and contractual clauses, as well as an annex with indicative minimum security measures.

V

#### Administrative infringement

The installation by the respondent of a video surveillance camera on the facade of their home capable of capturing the public road is considered an infringement, attributable to the respondent, in accordance with Article 5.1.c of the GDPR, which states that personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

Furthermore, the mandatory informative signs of the monitored area fail to comply with the respondent's obligation to inform the interested party of the collection of personal data, as provided in Article 13 of the GDPR.

The described facts constitute an infringement classified under Article 83.5 of the GDPR, which states the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: (...)

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10/13

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; "

b) the rights of the data subjects under Articles 12 to 22; "

For the purposes of the statute of limitations for violations, the alleged violation is subject to a three-year limitation period, in accordance with Article 72 of the LOPDGDD, which qualifies the

following conduct as very serious:

Article 72. Violations considered very serious.

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and will be subject to a three-year limitation period, which entail a substantial breach of the articles mentioned therein, and in particular, the following:

a) "The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law."

VI

Proposal for a warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)"

For its part, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph that:

"3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived. The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

In this case, given the circumstances present in this procedure, it is deemed appropriate to issue a warning for the violation of the infringed articles.

VII

Adoption of measures

In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame..."

In this case, the party being addressed states that it will proceed with the removal of the cameras, but so far there is no record of their removal; therefore, this Agency requires the controller to, within one month:

- Provide evidence of having removed the camera or video camera system from the current location or reoriented it, so that the viewing of the images does not capture public thoroughfare or, if applicable, only captures the minimum portion of public areas necessary to ensure the safety of persons, property, and facilities.

- Provide evidence of having placed the informational device in the monitored areas (it must identify, at a minimum, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in these provisions), placing this device in a sufficiently visible location, both in open and closed spaces.

- Provide evidence that the information referred to in Article 13 of the GDPR is available to the affected parties.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in

the resolution of this procedure may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Data Protection Agency RESOLVES:

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12/13

FIRST: TO ISSUE A WARNING to B.B.B., with NIF \*\*\*NIF.1, for the violations of articles 5.1 c) and 13 of the GDPR classified under articles 83.4 and 83.5 of the GDPR.

SECOND: TO ORDER B.B.B., with NIF \*\*\*NIF.1, pursuant to article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable:

- To prove that it has proceeded to remove the camera or video camera system from the current location or to reorient it, in such a way that the viewing of the images does not capture public thoroughfare or, if applicable, only captures the minimum portion of public areas necessary to ensure the safety of persons, property, and facilities.
- To prove that it has placed the informational device in the monitored areas (it must identify, at a minimum, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in these provisions), locating this device in a sufficiently visible place, both in open and closed spaces.
- To prove that it maintains the information referred to in article 13 of the GDPR available to the affected parties.

THIRD: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided in article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with the documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

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